

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

7. GABRIEL GIAMANCO V. MONIFA GIAMANCO

PFL20210240

On January 27, 2026, Petitioner filed an Order to Show Cause and Affidavit for Contempt (OSC) alleging 15 violations of custody orders. Respondent was personally served on February 24, 2026. Minor's Counsel was not served.

This matter is dropped from calendar due to lack of proper service as Minor's Counsel was not served. All parties to the action are to be served with requests filed with the court.

TENTATIVE RULING #7: THIS MATTER IS DROPPED FROM CALENDAR DUE TO LACK OF PROPER SERVICE AS MINOR'S COUNSEL WAS NOT SERVED. ALL PARTIES TO THE ACTION ARE TO BE SERVED WITH REQUESTS FILED WITH THE COURT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 23, 2026
8:30 AM/1:30 PM

8. ASHLEY HIGHTREE V. JEFFREY MCQUARY

25FL0021

On November 13, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders as well as child support orders. She filed her Income and Expense Declaration concurrently therewith and the parties were referred to Child Custody Recommending Counseling (CCRC). Both documents were served on November 18, 2025, however there is no indication that the CCRC referral was served and Respondent did not appear at the scheduled CCRC appointment.

On December 19, 2025, Petitioner filed and served a Declaration of Ashley Hightree in Support of Request for Visitation Orders.

The parties attended CCRC on March 13, 2026 and were able to reach agreements as to custody and visitation. A report codifying those agreements was prepared and mailed to the parties the same day.

On March 25th, Petitioner filed another RFO seeking attorney's fees and a continuance of the trial date. She concurrently filed a Declaration of Attorney Rebecca Esty-Burke in Support of Petitioner's Request for Order. All required documents, with the exception of the Notice of the Tentative Ruling, were served on April 8th. While this generally would have been untimely service, Petitioner obtained ex parte leave to have the matter heard on a shortened basis. The request was granted and Respondent's time to file a responsive declaration was extended to April 20th.

Respondent filed and served a Responsive Declaration to Request for Order on April 14th.

Respondent filed another Responsive Declaration to Request for Order on April 16th though there is no Proof of Service for this document therefore the court has not read or considered it.

After reviewing the filings as outlined above, the court finds the agreements contained in the March 13, 2026 CCRC report to be in the best interests of the minor. They are hereby adopted as the orders of the court.

Moving to the issue of child support, "[f]or all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); See *also* Cal. Fam. Code §2100. "'Current' means the form has been completed within the past three months providing no facts have changed." Cal. Rule Ct. 5.260(3). Here, while Petitioner did file her Income and